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No. 1989/39 – THURSDAY, OCTOBER 20, 2016

(Published by Authority)

PART I : SECTION (I) – GENERAL

Government Notifications

My No. : CI / 1844.

THE INDUSTRIAL DISPUTES ACT, CHAPTER 131

THE Collective Agreement entered into between Tal Lanka Hotels PLC, No. 25, Galle Face Center Road, Colombo 03 of the one part and Employee Relation and Staff Welfare Association of Tal Lanka Hotels PLC, Colombo of the other part on 01st day of April 2016 is hereby published in terms of Section 06 of the Industrial Disputes Act, Chapter 131, of the Legislative Enactments of Ceylon (Revised Edition 1956).

M. D. C. AMARATUNGA,
Commissioner of Labour.

Department of Labour,
Labour Secretariat,
Colombo 05.
11th October, 2016.

Collective Agreement No. 20 of 2016

COLLECTIVE AGREEMENT

This Collective Agreement is entered into between, TAL LANKA HOTELS PLC, a duly incorporated company having its Registered Office at No. 25, Galle Face Center Road, Colombo 3 (hereinafter referred to as the “EMPLOYER”) of the One part and the employees in the Non-Executive grades who are members of the EMPLOYEE RELATION AND STAFF WELFARE ASSOCIATION OF TAL LANKA HOTELS PLC, Colombo and whose names are stipulated in schedule one (1) hereof, (hereinafter referred to as “EMPLOYEES “) and who have authorized Eleven employees, whose names are stipulated in the schedule Two (2) hereof (hereinafter referred to as “The Authorized Bargaining Agents”), to represent their interests, agree and sign on their behalf, of the other Part,

WITNESSETH and it is hereby agreed between the parties as follows :

TITLE : This Collective Agreement shall hereinafter be known as the Tal Lanka Hotels PLC Non Executive Grades Collective Agreement 2016 - 2018



1. **Parties Covered and Bound.**— The terms of this Collective Agreement shall cover and bind the Employer, the Employees who are members of the Employee Relation and Staff Welfare Association employed by the Employer in non-executive grades and whose names appear in schedule one (1) hereof and The Authorized Bargaining Agents whose names appear in Schedule Two (2) hereof.

2. **Date of Operation and Duration.**— The Agreement shall be effective as from the First day of April 2016 and shall continue to be in force thereafter unless it is terminated by either party giving one month's notice in writing to the other, subject to the proviso that one party hereto shall not give such notice to the other party to commence before 1st of March 2018 and such notice shall not expire before 31st March 2018.

3. **Salaries.**— Parties agree that the basic wage of Employees covered by this Agreement shall be revised in the following manner:

- (i). The Employees who have completed a minimum period of one year in service as at 1st April 2016 and who are in service as at the date of signing of this Agreement will be entitled to the salary increase granted hereunder.
- (ii). With effect from 1st April 2016 the monthly salaries of Employees will be revised in the following manner.
 - Employees who have completed 01 year and less than 05 years - Rs. 1,900.00
 - Employees who have completed 05 years and less than 09 years - Rs. 2,900.00
 - Employees who have completed 09 years and above - Rs. 4,000.00
- (iii). Parties agree that the above salary increase granted will cover a period of two years commencing with effect from 1st April 2016 and ending on 31st March 2018.
- (iv). The Employees entitled to the salary increase referred to above will be paid a sum of Rs. 3,800/-, or Rs.5,800/- or Rs.8,000/- as per 3 (iii) above as arrears for the period 1st April 2016 to 31st May 2018.

Ex: (Rs.1,900.00 x 2, Rs.2,900.00 x 2 and Rs. 4,000.00 x 2)

- (v). The next Wage Settlement will be due on 1st April 2018.

4. **Annual Increment.**— The Employer will continue to grant the annual increment following the hitherto prevailed practice based on the Performance management system.

Grade	Percentage	Remarks
A+	15%	Outstanding Performer
A	12%	Good Performer
B	10%	Average Performer
C	8%	Poor Performer

It was agreed to take the number of no pays into consideration when deciding on the grading of individual based on their appraisals. Increments will be paid on Basic Salary.

No Pay	:01 to less than 05 days	= 6%
	:05 Days and Above	= 0%

Special consideration will be made while awarding increments for those employees who are retiring in that particular Financial Year. Employee's who are in the carder as at 01st October 2015 will only be considered for the increments.

5. **Demands of a Financial Nature.**— “The Bargaining Agents” and the “Employees” jointly and severally agree that they shall not make any demands of a financial nature or any request in respect of matters covered by the Collective Agreement, during the initial period of coverage of this Collective Agreement and shall not resort to any form of trade union action on such matters during the said period. (The period between 1st April 2016 to 31st March 2018)

6. **Loans.**— The employer will disburse ten loans per month to ten suitable employees following the practice hitherto prevailed and the amount of each loan shall not exceed Rs. 100, 000/=. Such loans shall be granted only if the particular employee seeking the loan satisfies the eligibility criteria introduced by the employer. It is agreed between the parties that an employee who obtains such a loan shall not be entitled to any salary advance or any other loan or financial facility from the employer until such loan is fully settled by the employee. The loan shall be recovered in 10 monthly installments.

7. **New Year Gift.**– The employer will pay the annual New Year Gift following the hitherto prevailed practice, depending on the financial performance and profitability of the employer. The Employees through their Bargaining Agents may express their views for the consideration of the Employer, prior to payment is made to the employees. New Year Gift will be paid as per the company policy.

7.1 No Pay for New Year Gift. –

- (i). Authorized no pay upto 02 months subject to Medical Certificate will be paid and if it exceeds more than 02 months, bonus will be calculated on pro rata basis. Ex : 03 months for approved no pay (bonus amount/12) * 09 months.
- (ii). Authorized no pay more than 03 months will not be entitled for New Year Gift amount.
- (iii). This policy (No. 7.1) (i) & (ii) will not be applicable for those who are enjoying maternity benefits.
- (iv). For unauthorized no pay, New Year Gift will be paid as follows,
Ex: 01 Unauthorized no pay - 10% will be deducted from the New Year Gift
02 Unauthorized no pay - 20% will be deducted from the New Year Gift
05 Unauthorized no pay - 50% will be deducted from the New Year Gift
10 Unauthorized no pay - 100% will be deducted from the New Year Gift
- (v). New Year Gift policy is as follows :
 - (i) Employees who are in the carder as at 31st December of the previous year will be entitled for a full New Year Gift amount.
 - (ii) Employees who are in the carder between 01st January - 30th June will be entitled to 50% from the New Year Gift.
 - (iii) Employees who are in the carder between 01st July - 30th September will be entitled to 25% of the New Year Gift amount.
 - (iv) Employees who joined after 1st October and above will not be entitled to a New Year Gift.

8. **Salary Advance.** – The Employer will continue to grant salary advances for employees shall not exceed Rs. 7,000/=. The salary advance shall be recovered in monthly emoluments of the employees.

9. **Death Donation.**– The hitherto adopted practice regarding the Death Donation will continue. In the event of a death of a family member of an employee, the joint death donation paid by the employer and employees to the employee concerned shall be Rs. 100,000/=. In the event of a death of an employee, the Employer and fellow employees jointly shall contribute an amount equal to Rs.200,000/=. The employer shall provide a vehicle to employees of the department to which the deceased employee was attached to, in order to attend the funeral. The employer agrees that the facility of providing transport shall be applicable for even in the case of a death of a family member of an employee.

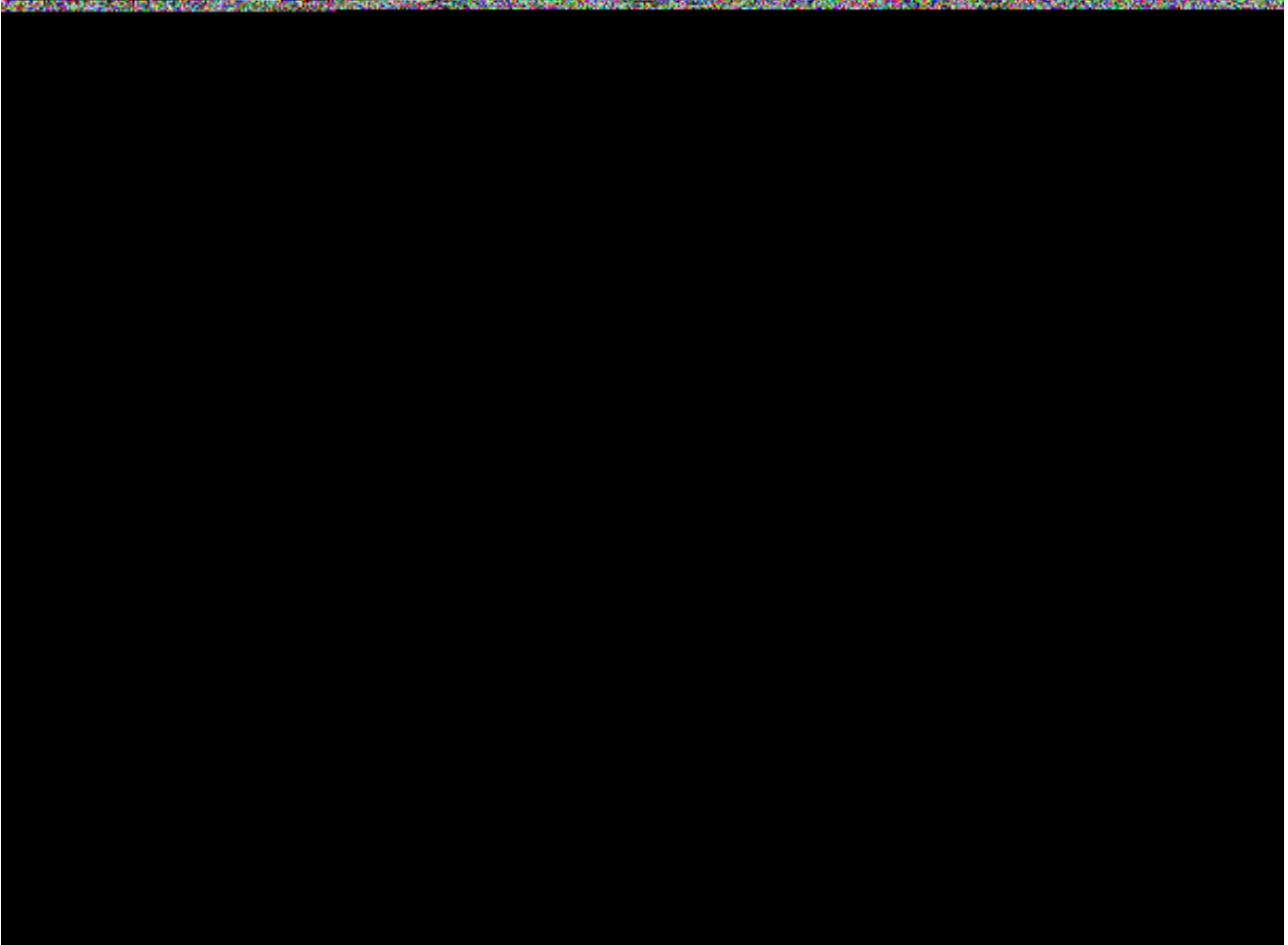
10. **Medical (Hospitalization).**– Employer will continue the existing medical policy of the company and the employees are paid Rs. 70,000/= per financial year.

11. **Annual Day Outing.**– The hitherto adopted practice regarding the Annual Day Outing entitl for staff will continue. Employerment shall grant Rs. 1000/= per employee in monetary value within a financial year.

12. **Dispute Settlement Procedure.**– The employees and the bargaining agents jointly and severally agree not to engage in any form of trade union action with regard to any matter covered by this Collective Agreement. With regard to matters not covered by this agreement the employees and the bargaining agents agree to the following dispute settlement procedure:

- (a) Whenever there is a dispute, a written statement of the dispute should be forwarded by the Bargaining Agent to the Employer, and

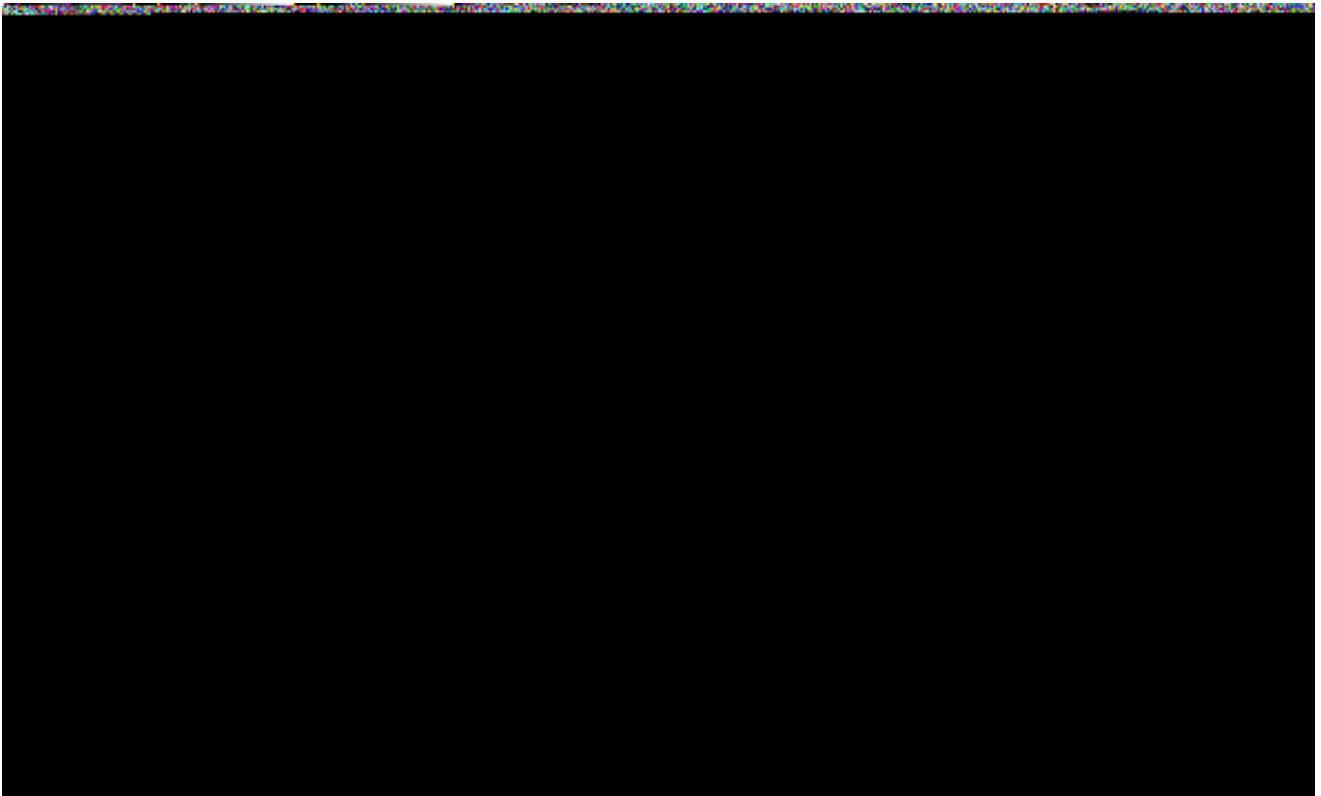
at least two weeks' time given for the employer to resolve the dispute.

- (b) If no satisfactory solution is found, the matter should be referred to the Employers' Federation of Ceylon (EFC), for the purpose of attempting to resolve the dispute.
 - (c) If after the discussions, the matter cannot be resolved, the conciliatory proceedings under the Industrial Disputes Act No. 43 of 1950 (as amended) should be followed.
 - (d) If after conciliation has failed in the Labor Department, the employees wish to take trade Union action, written notice should be given of not less than 14 days by the Bargaining Agents on behalf of the employees who are members of the Employee Relations and Staff Welfare Association to the Employer.
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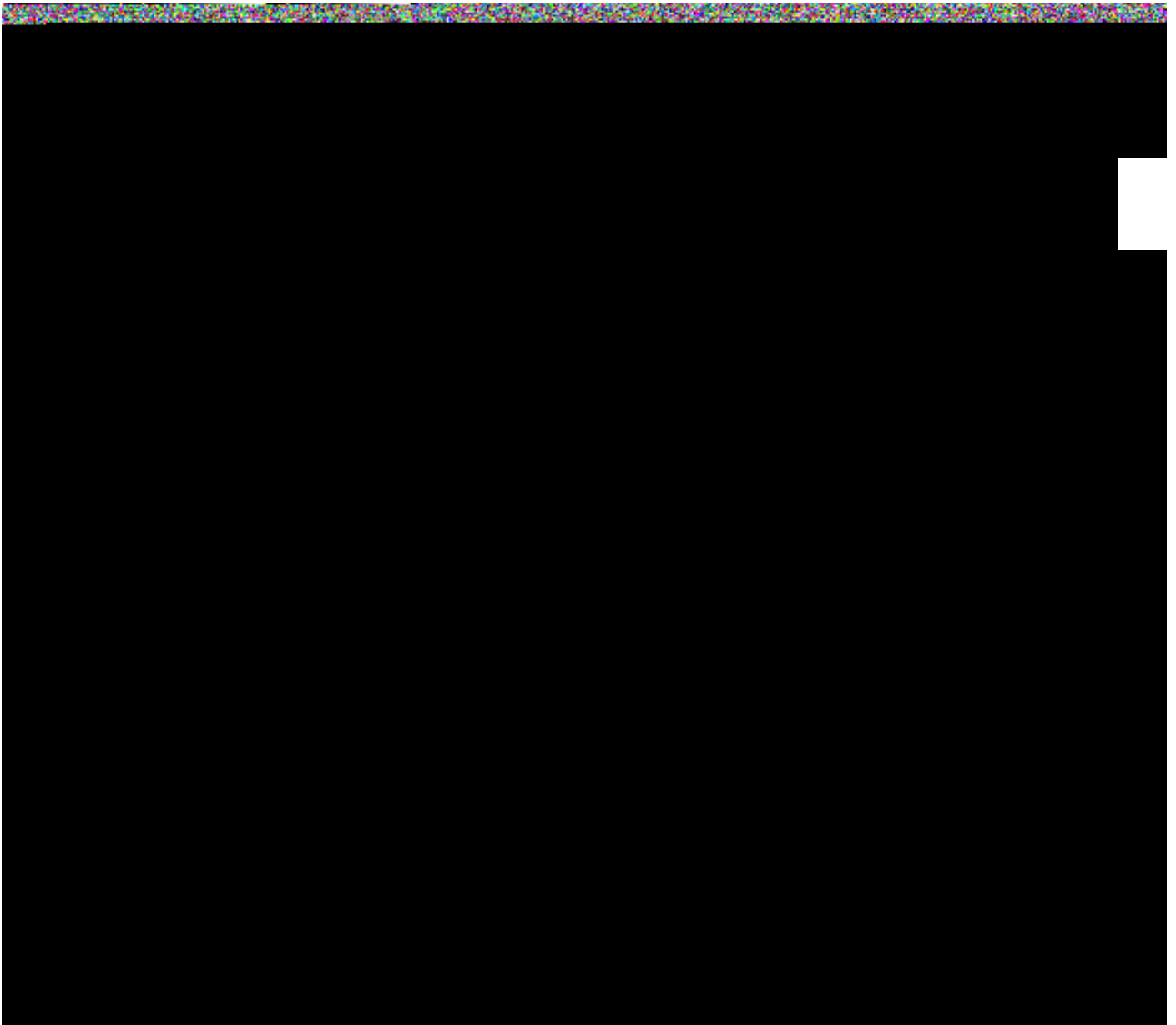
For and on behalf of employees
THE BARGAINING AGENTS

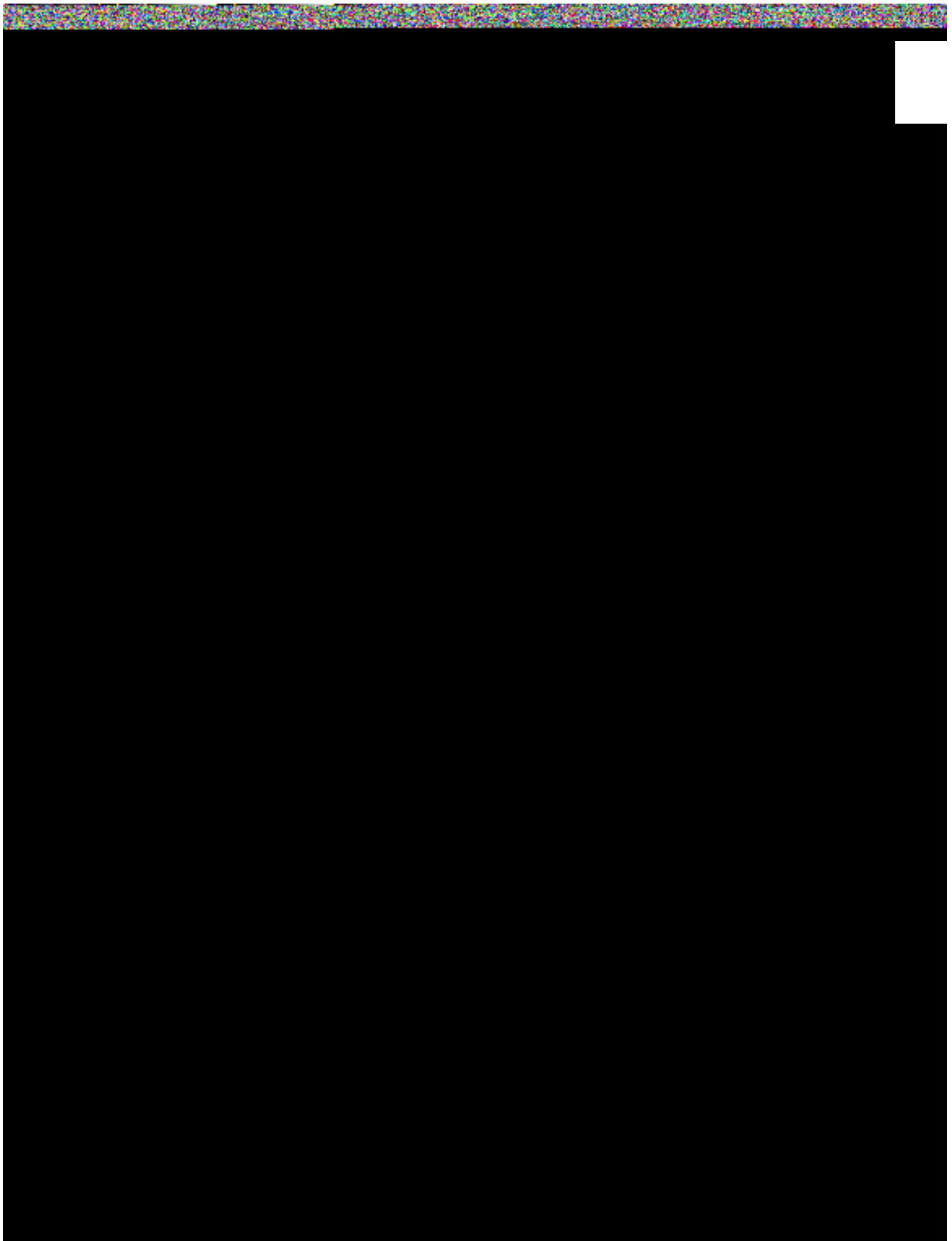
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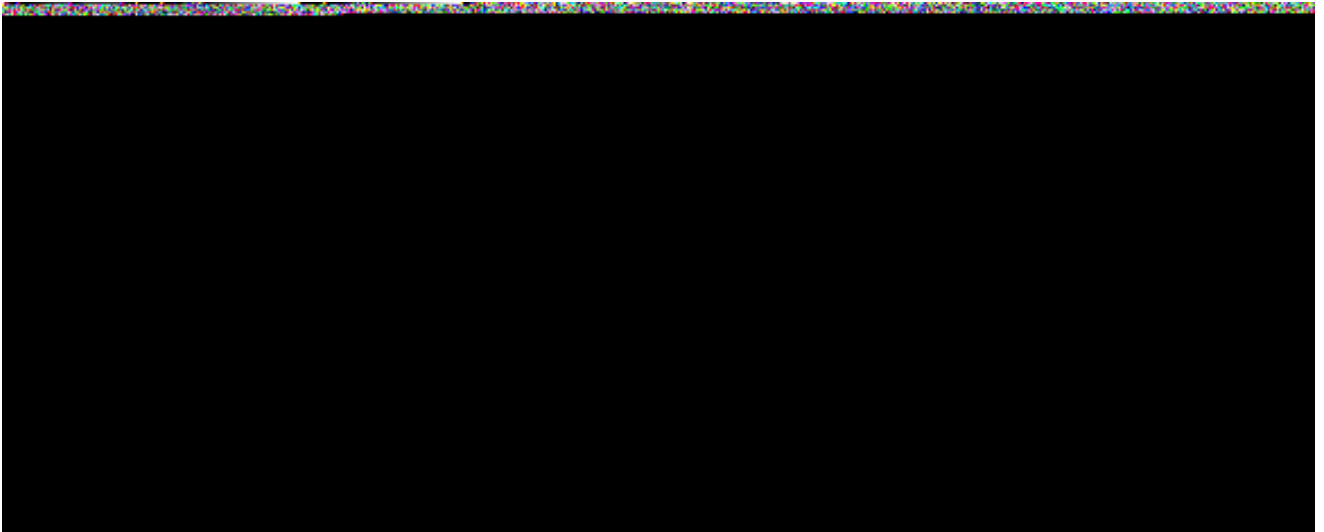
1. A. Hettiarachchi
2. T. I. Gajanayake
3. J. P. Ajith
4. Upali Athukorala
5. Nandika Pieris
6. W. A. Jayasinghe
7. P. H. C. Rathnayake
8. G. M. M. Aponso
9. N. Jayantha

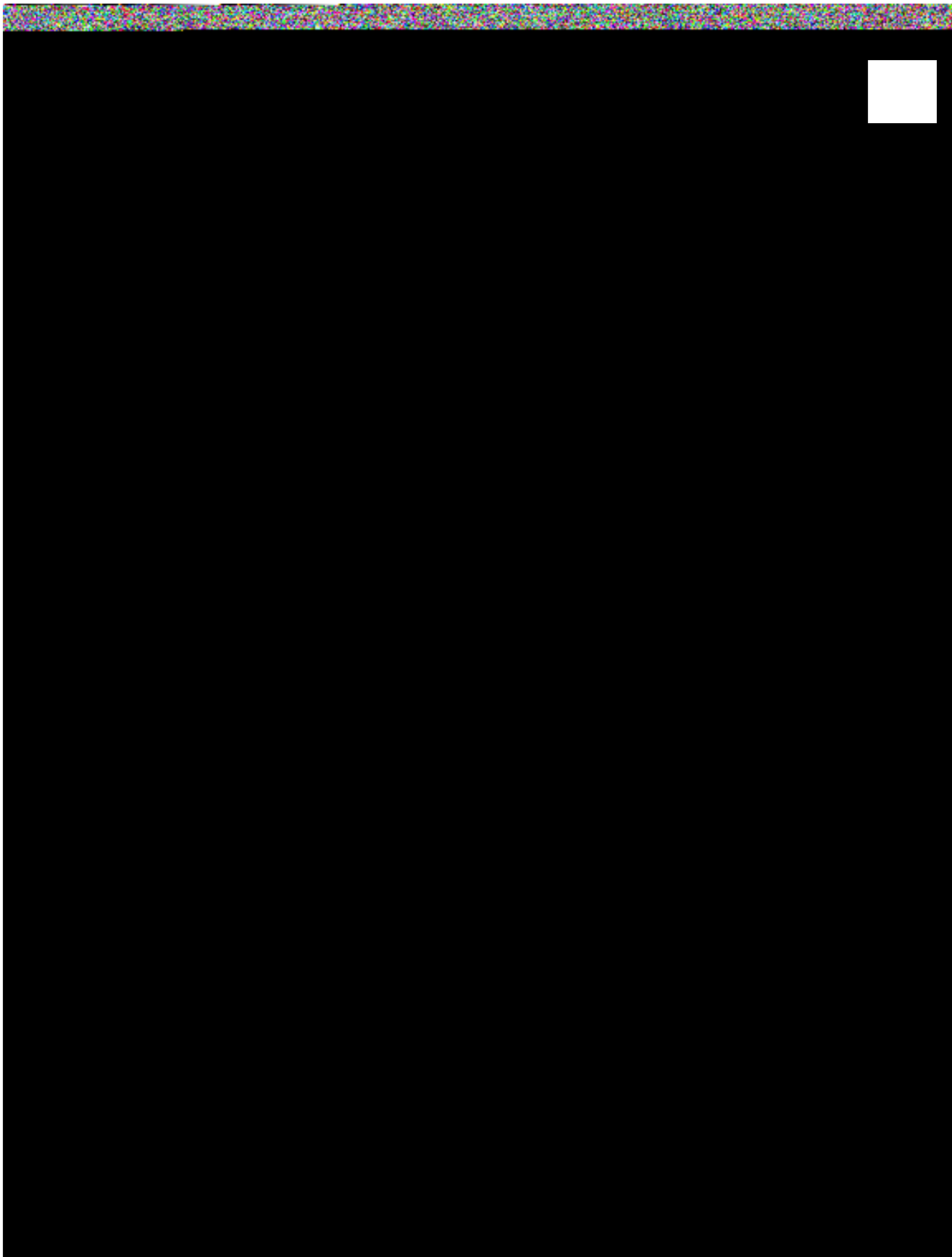


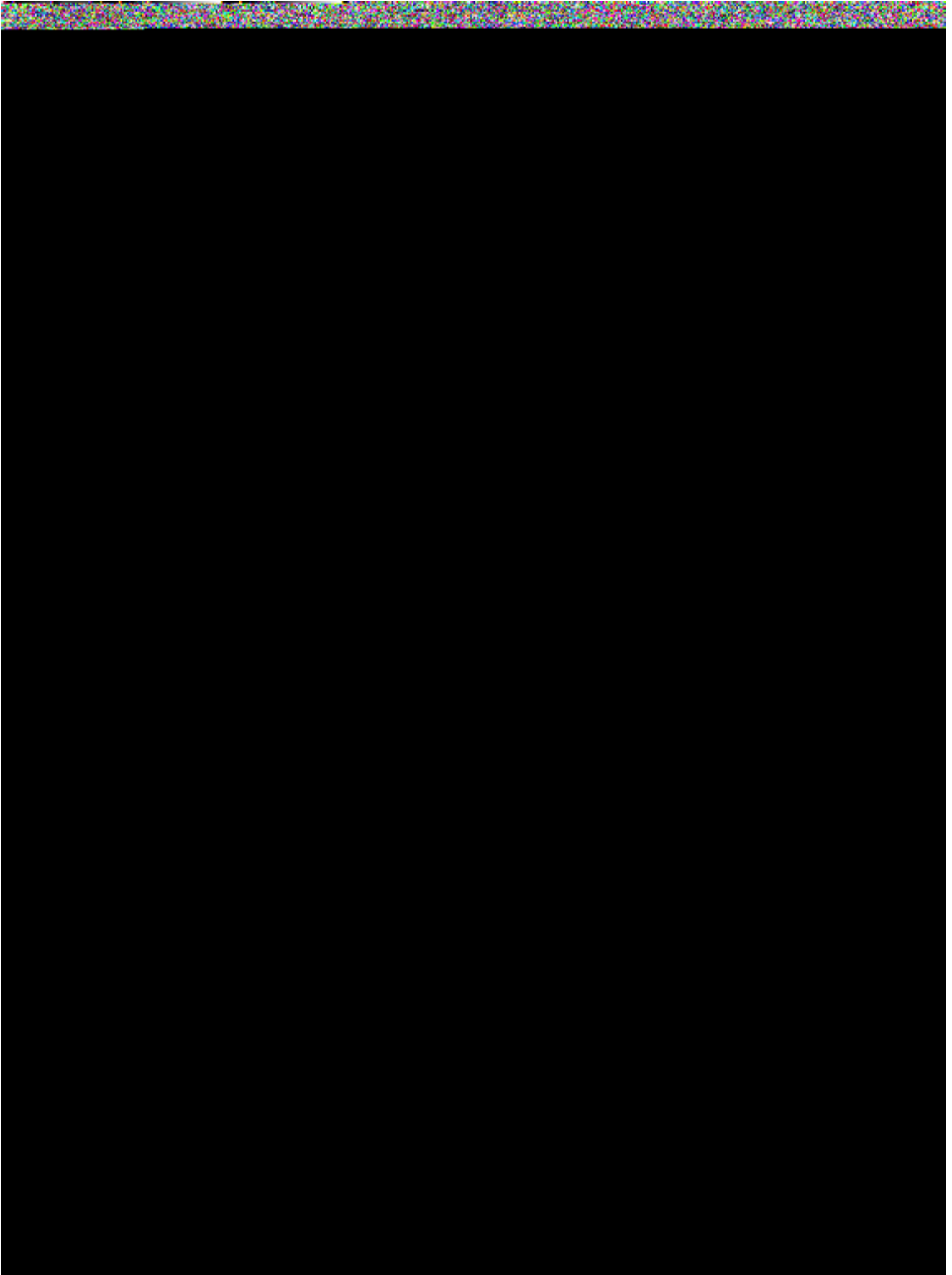


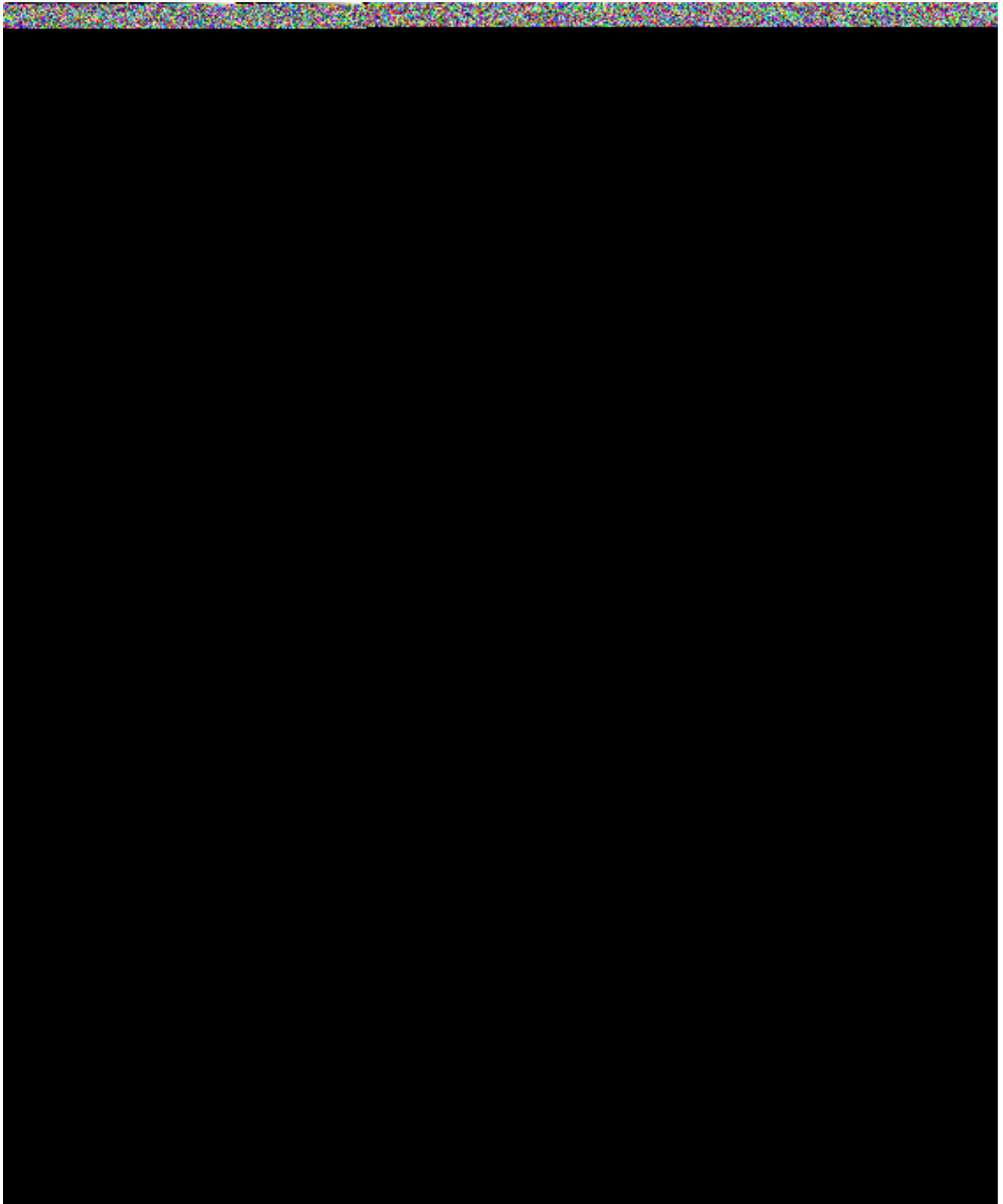


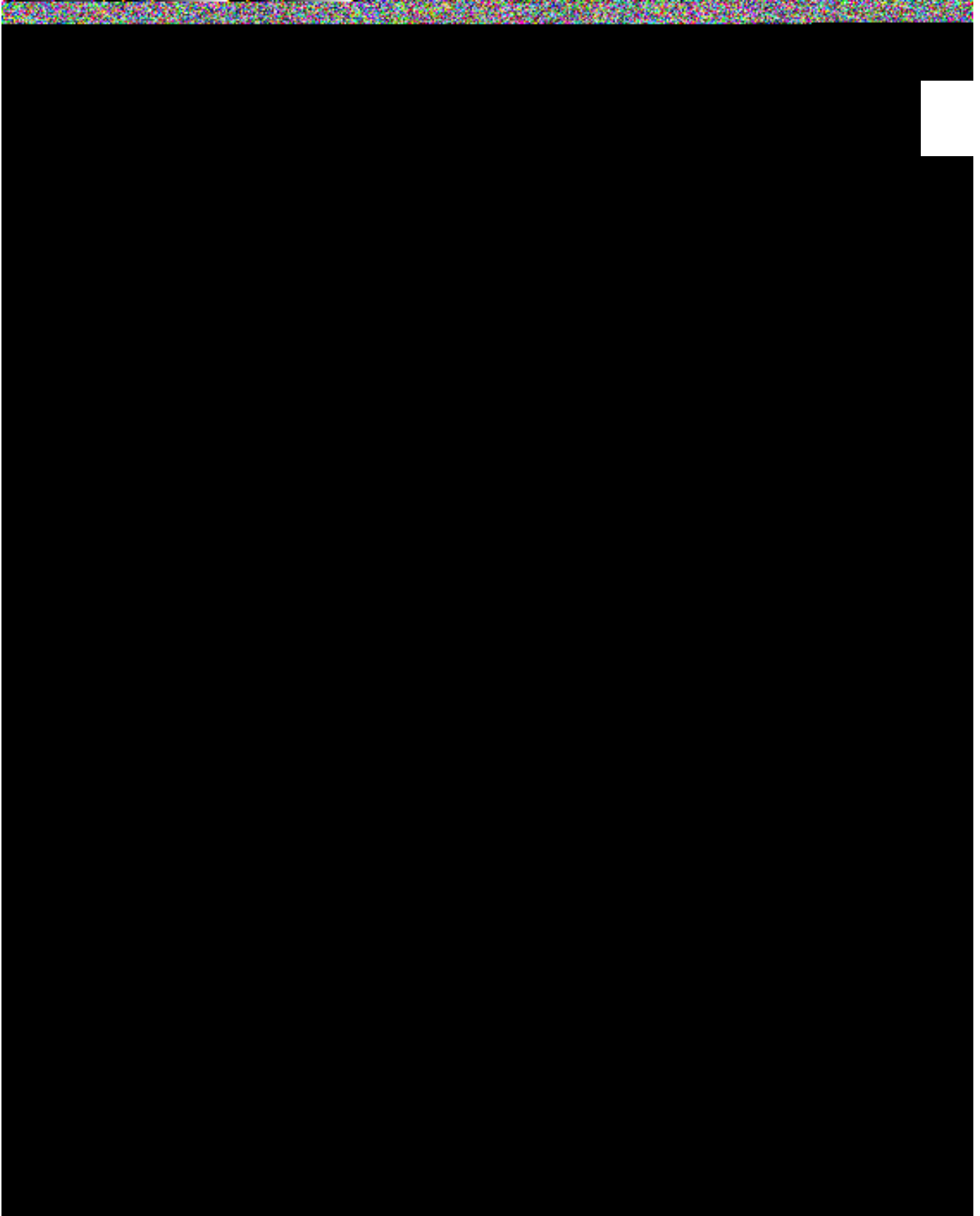


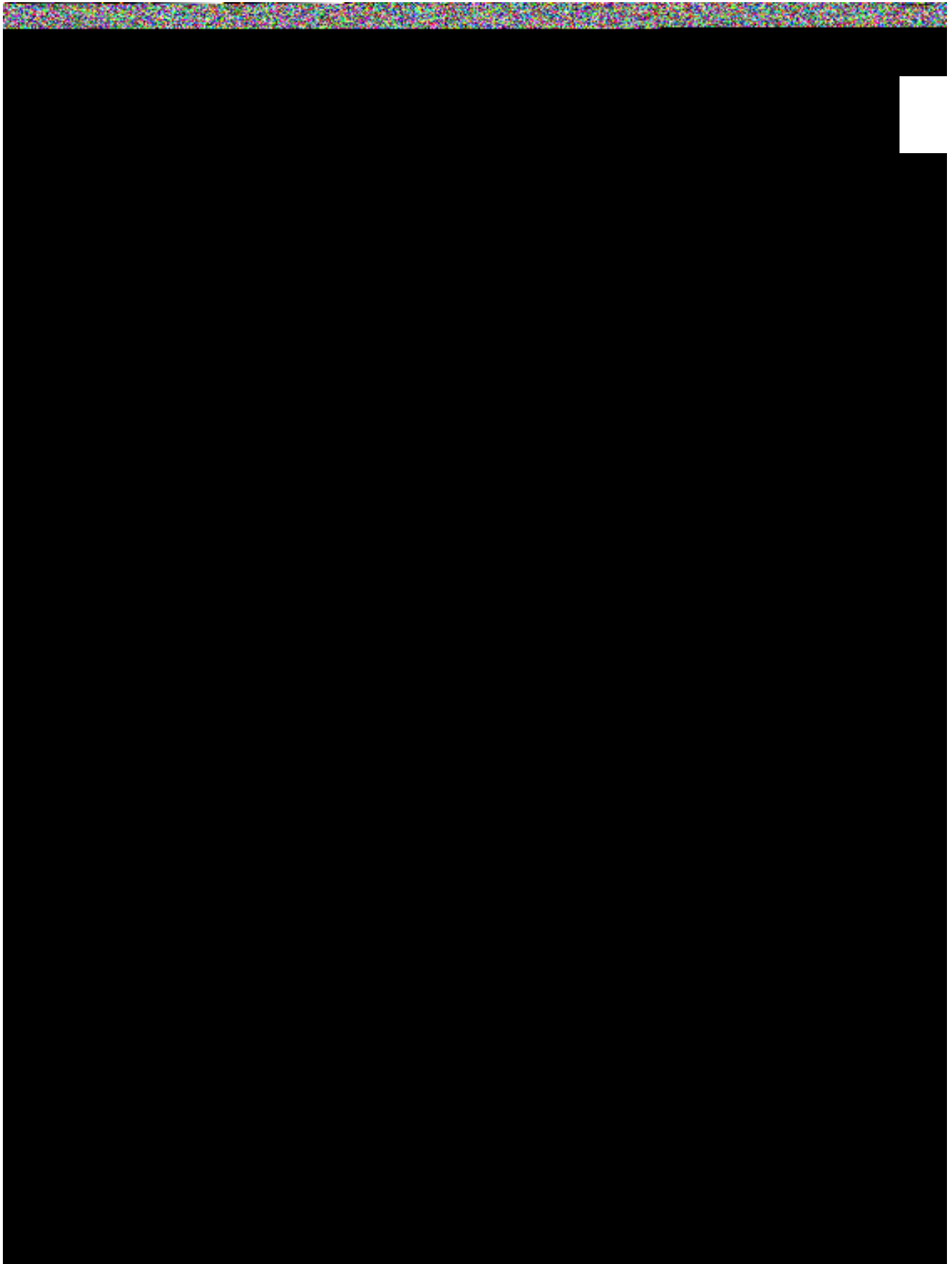


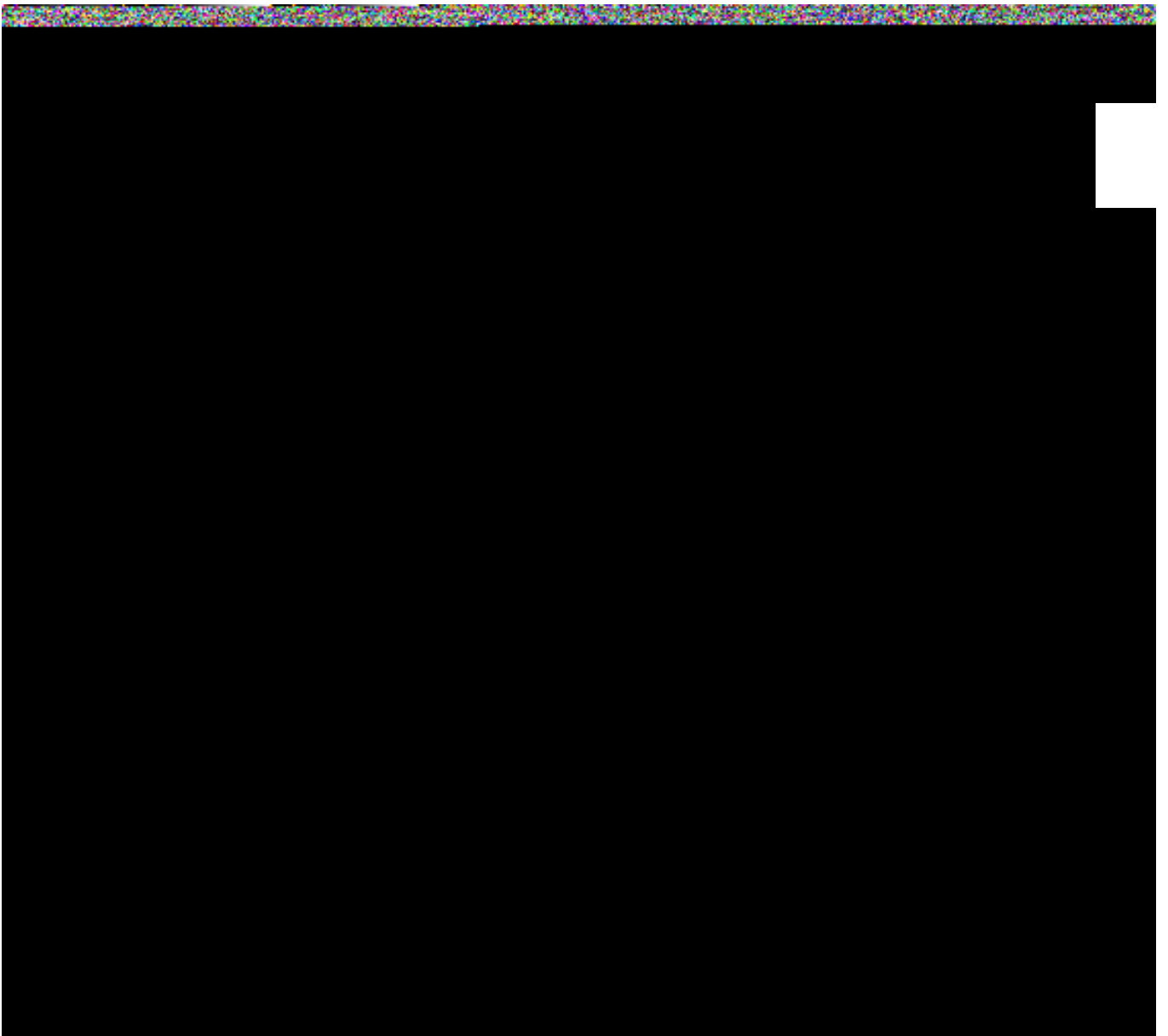




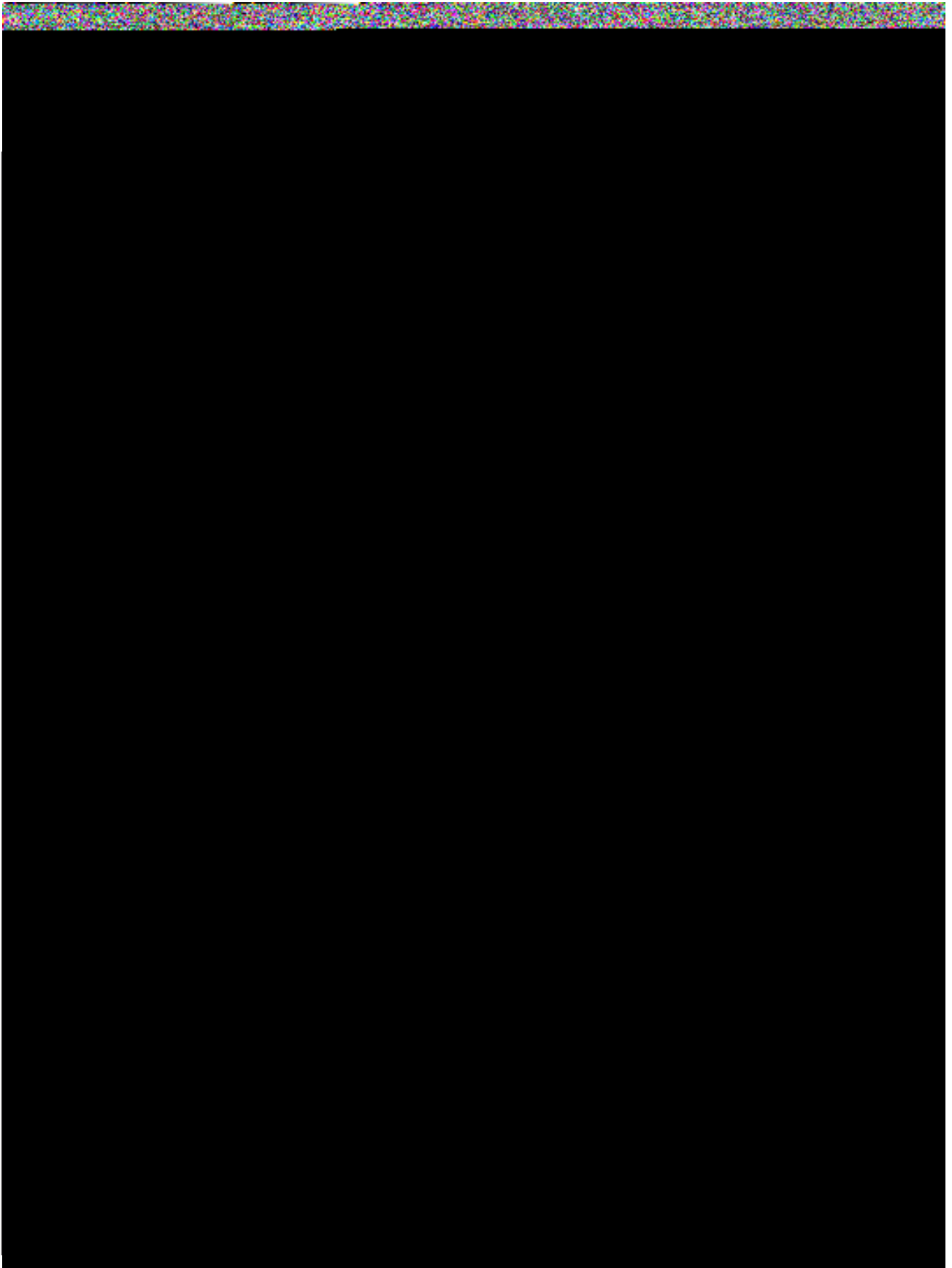


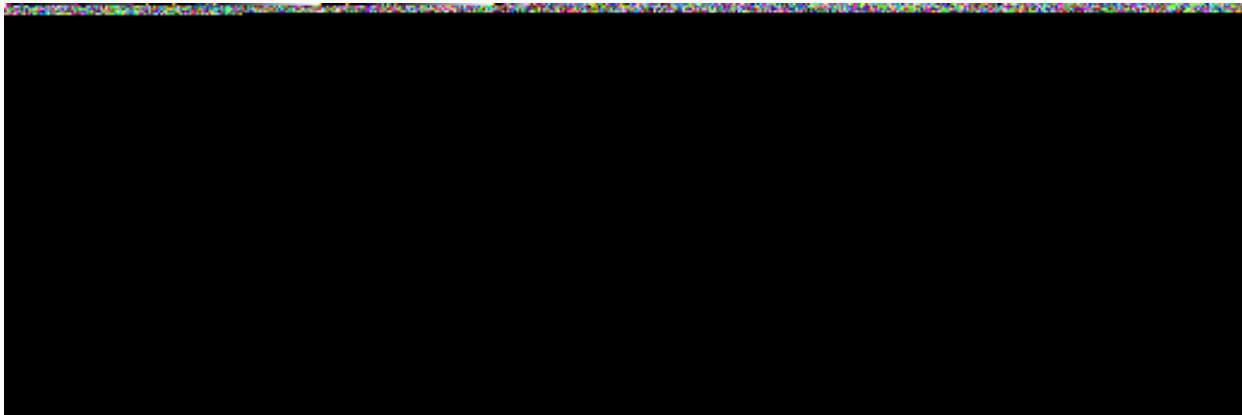


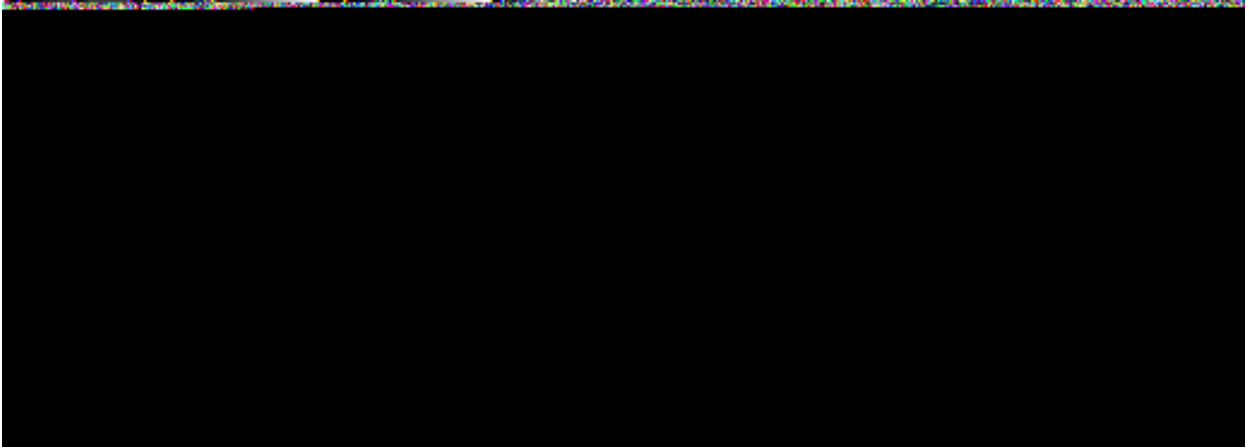


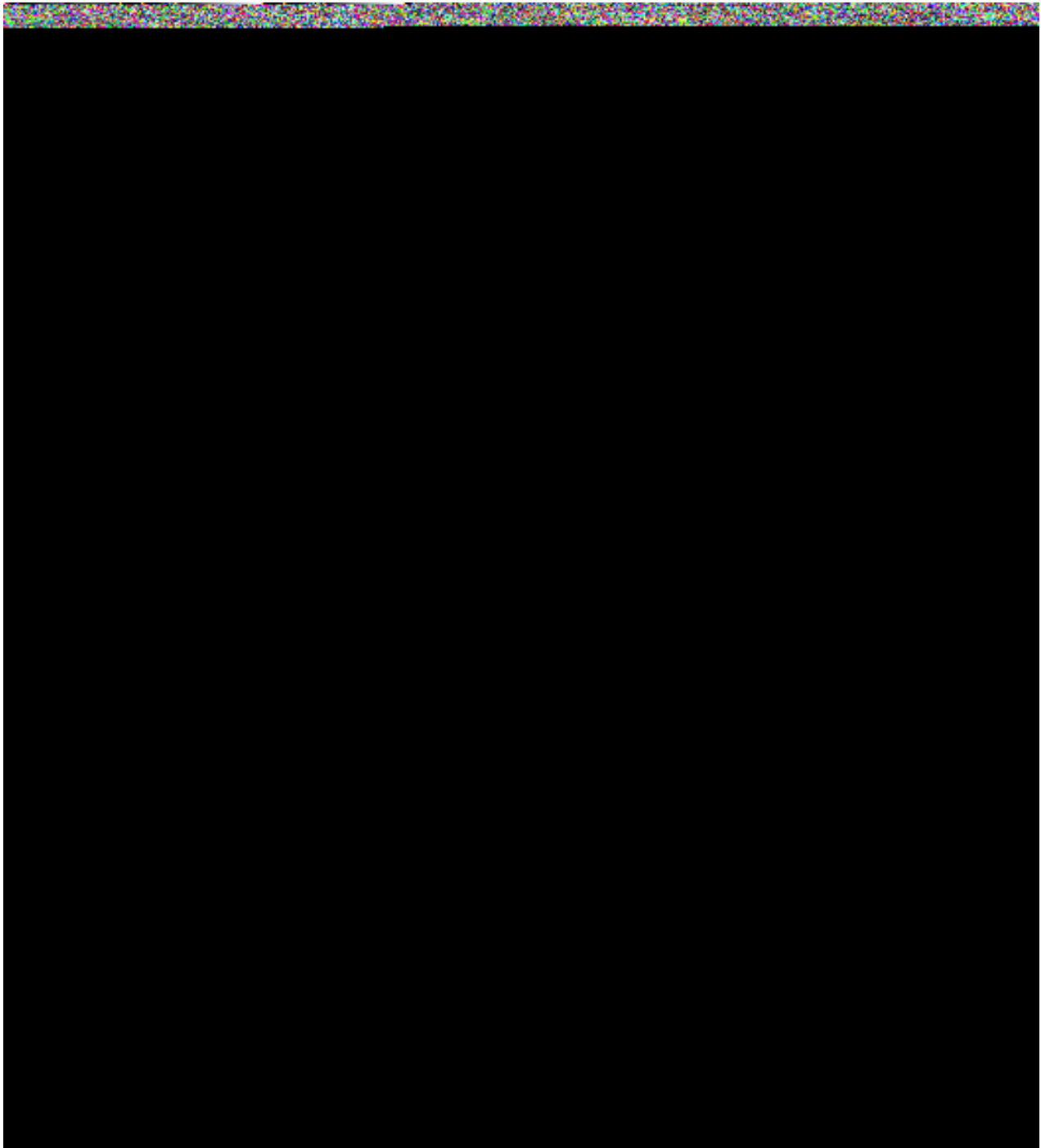


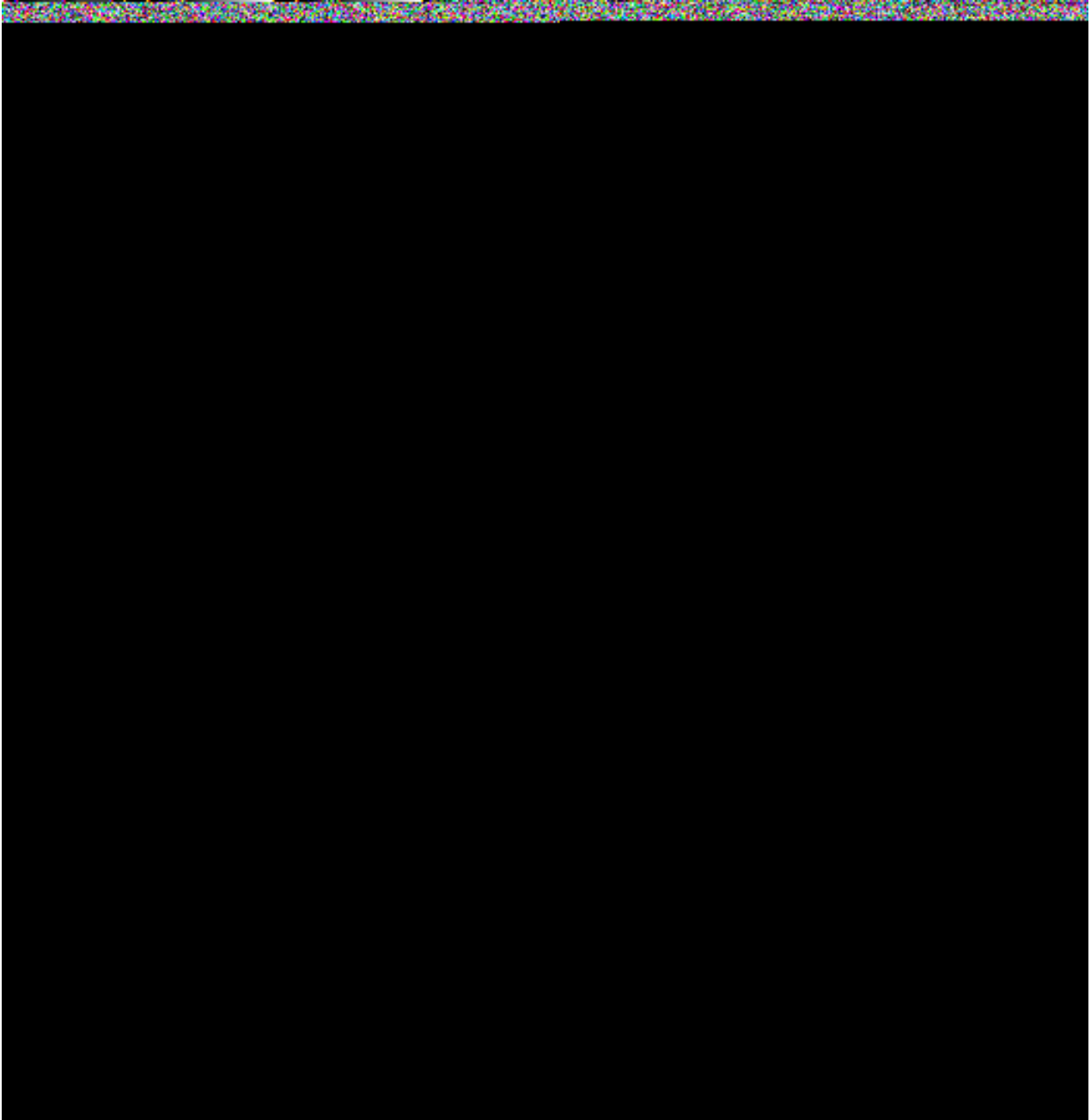


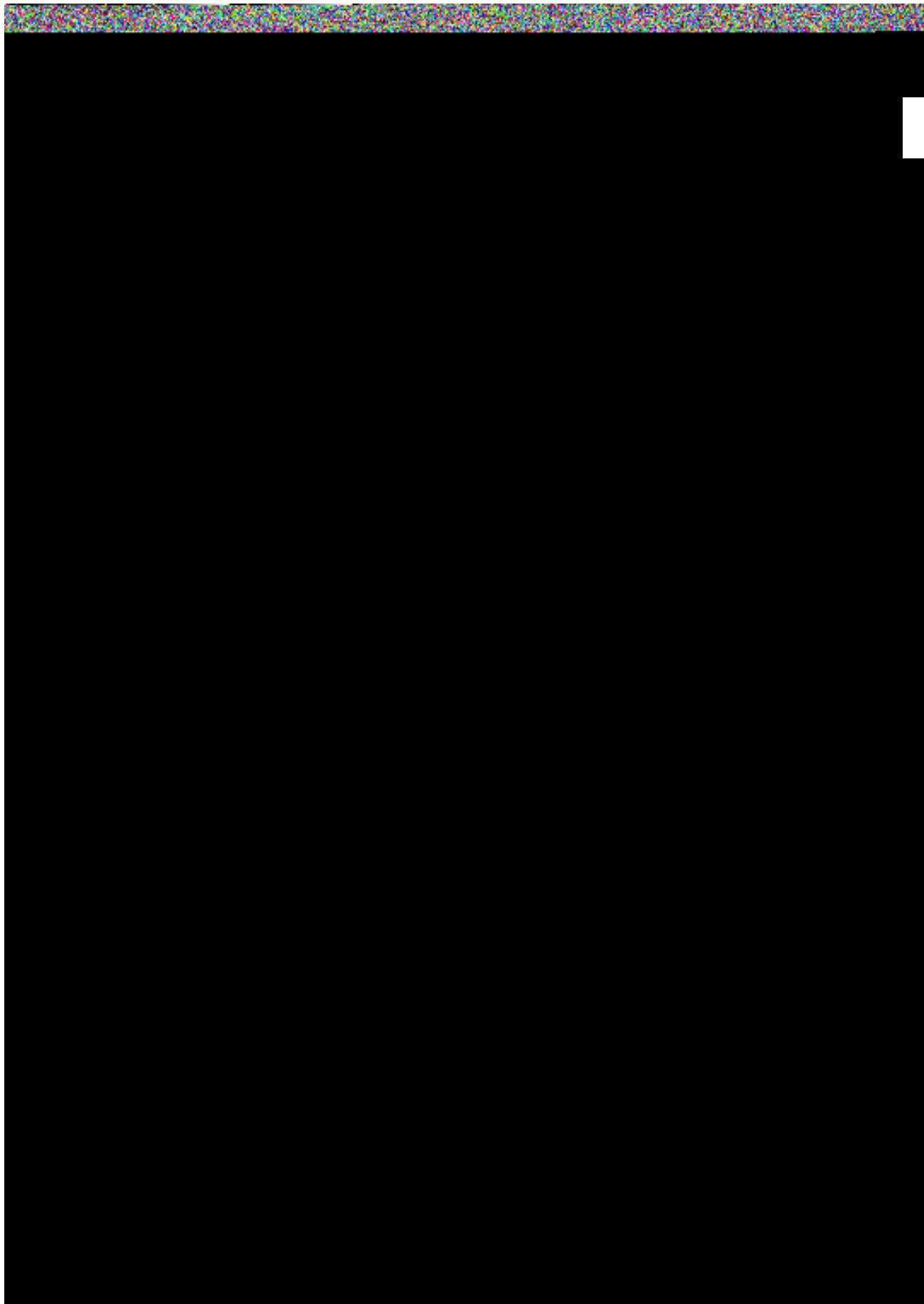


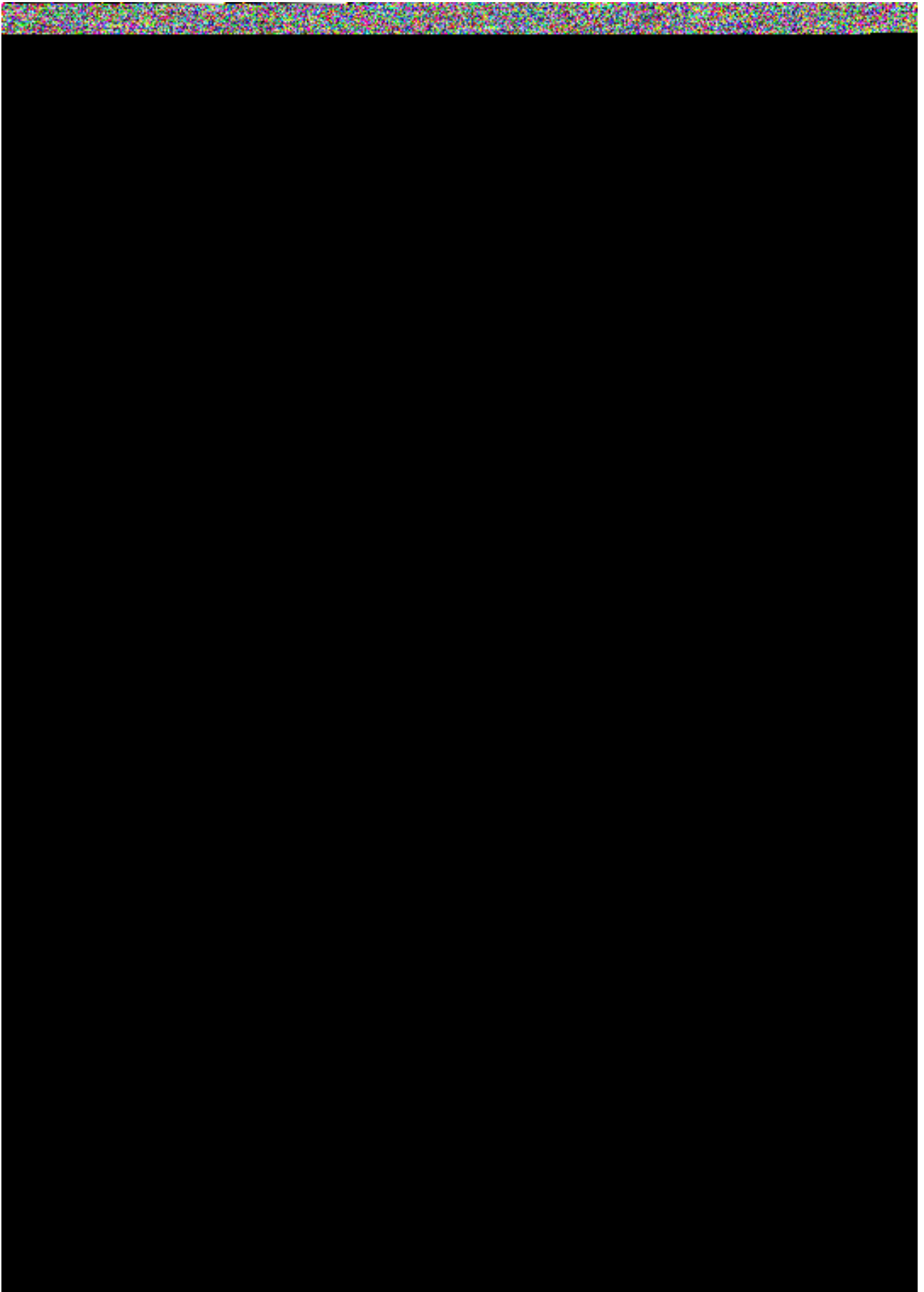


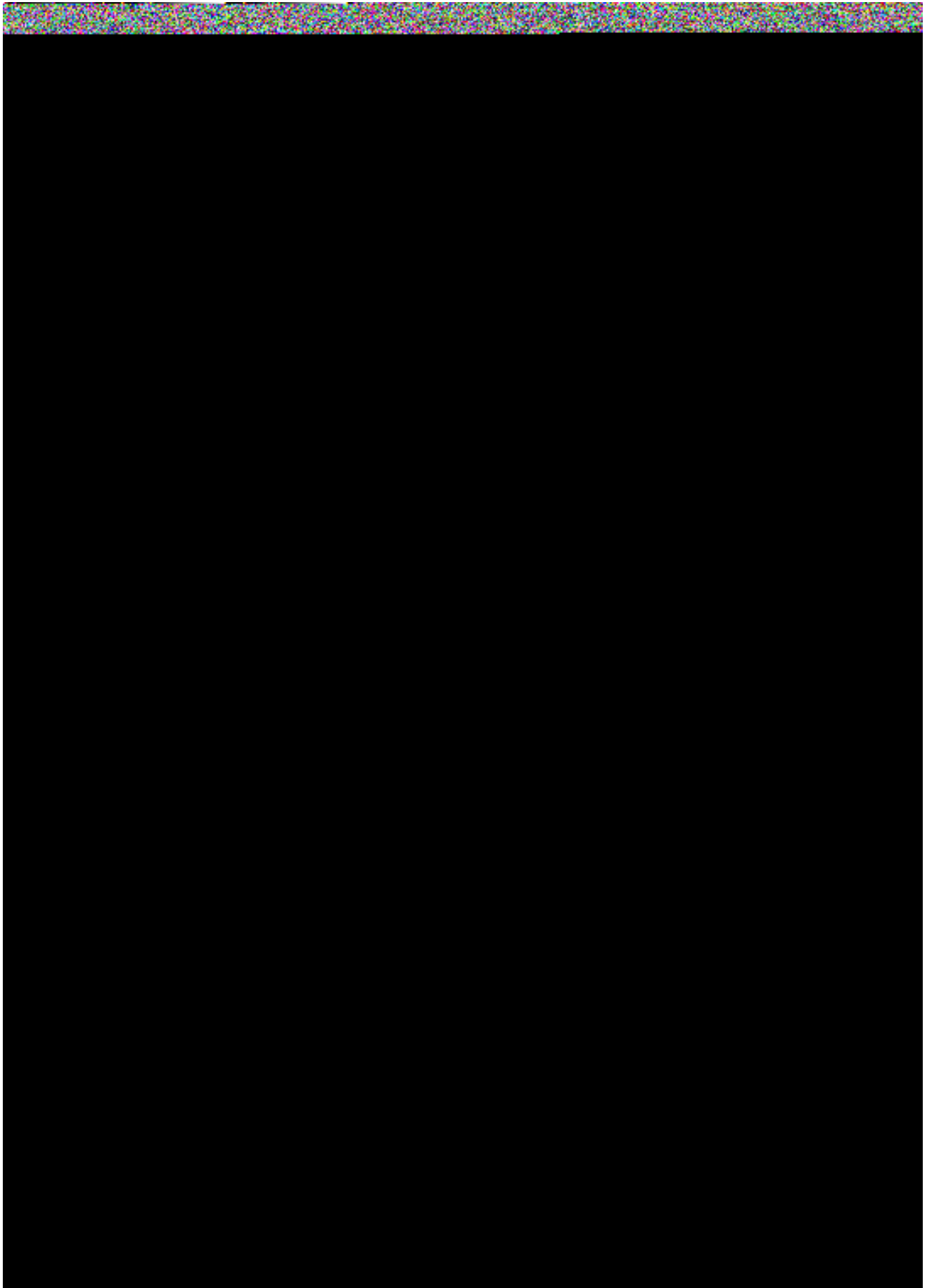


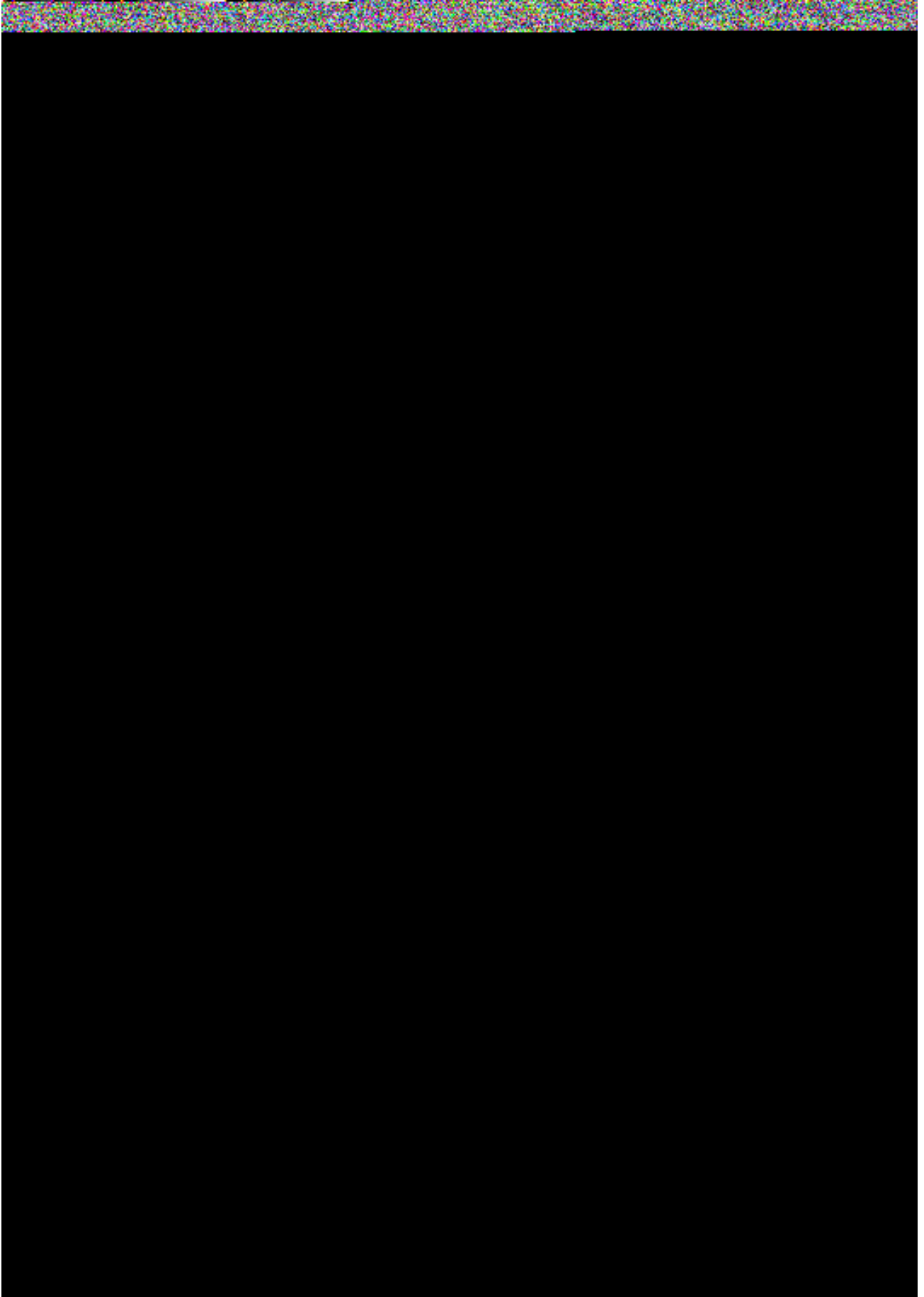


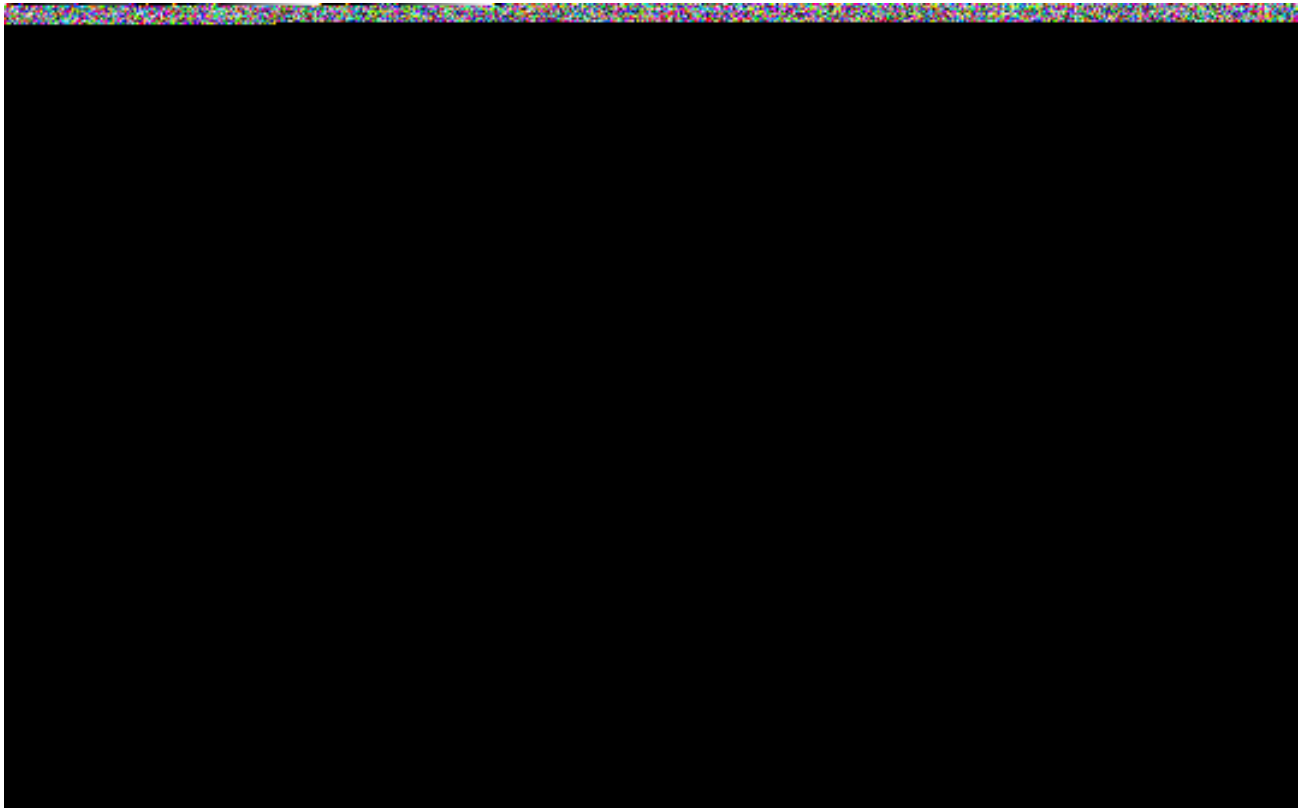




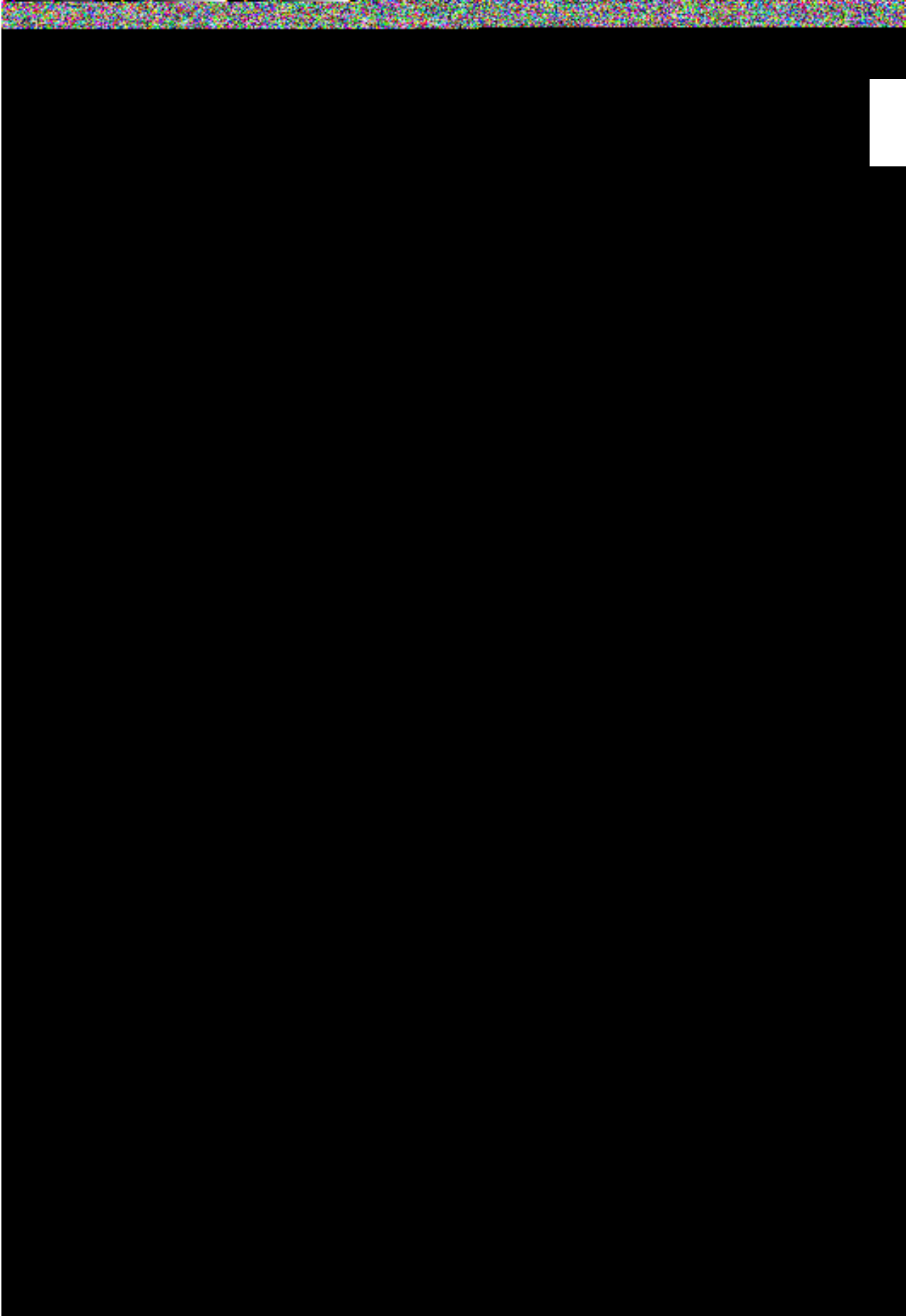




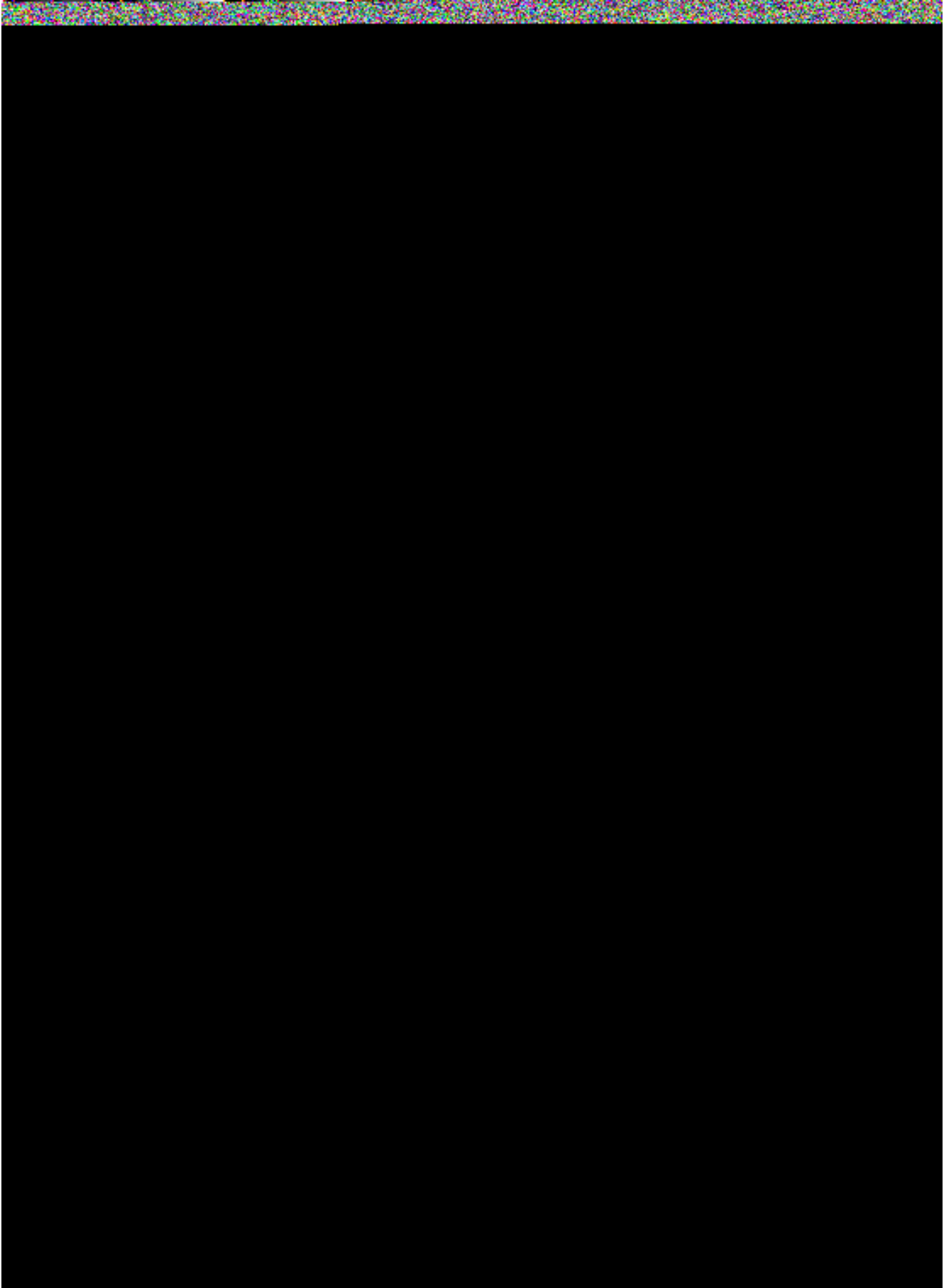


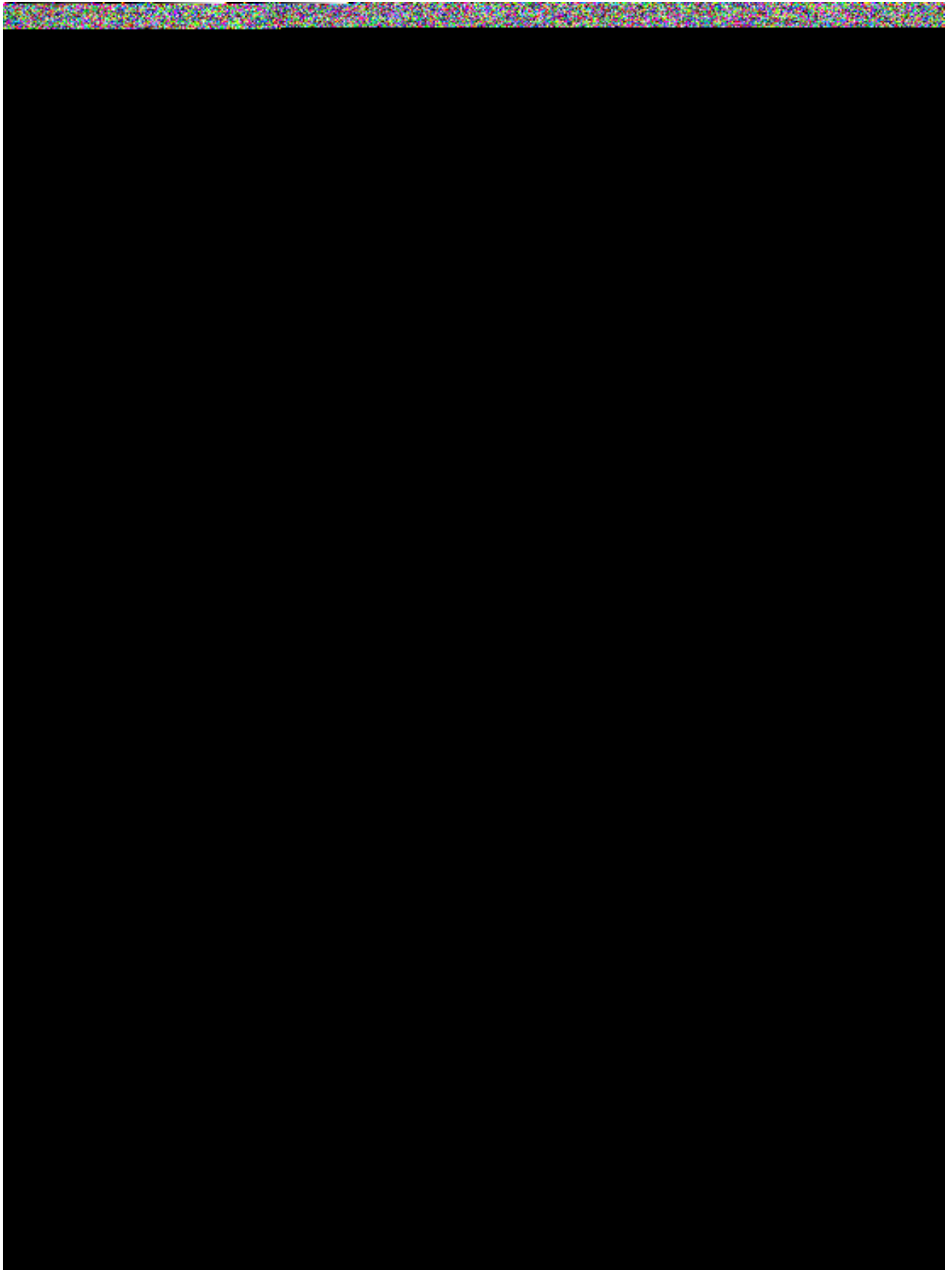


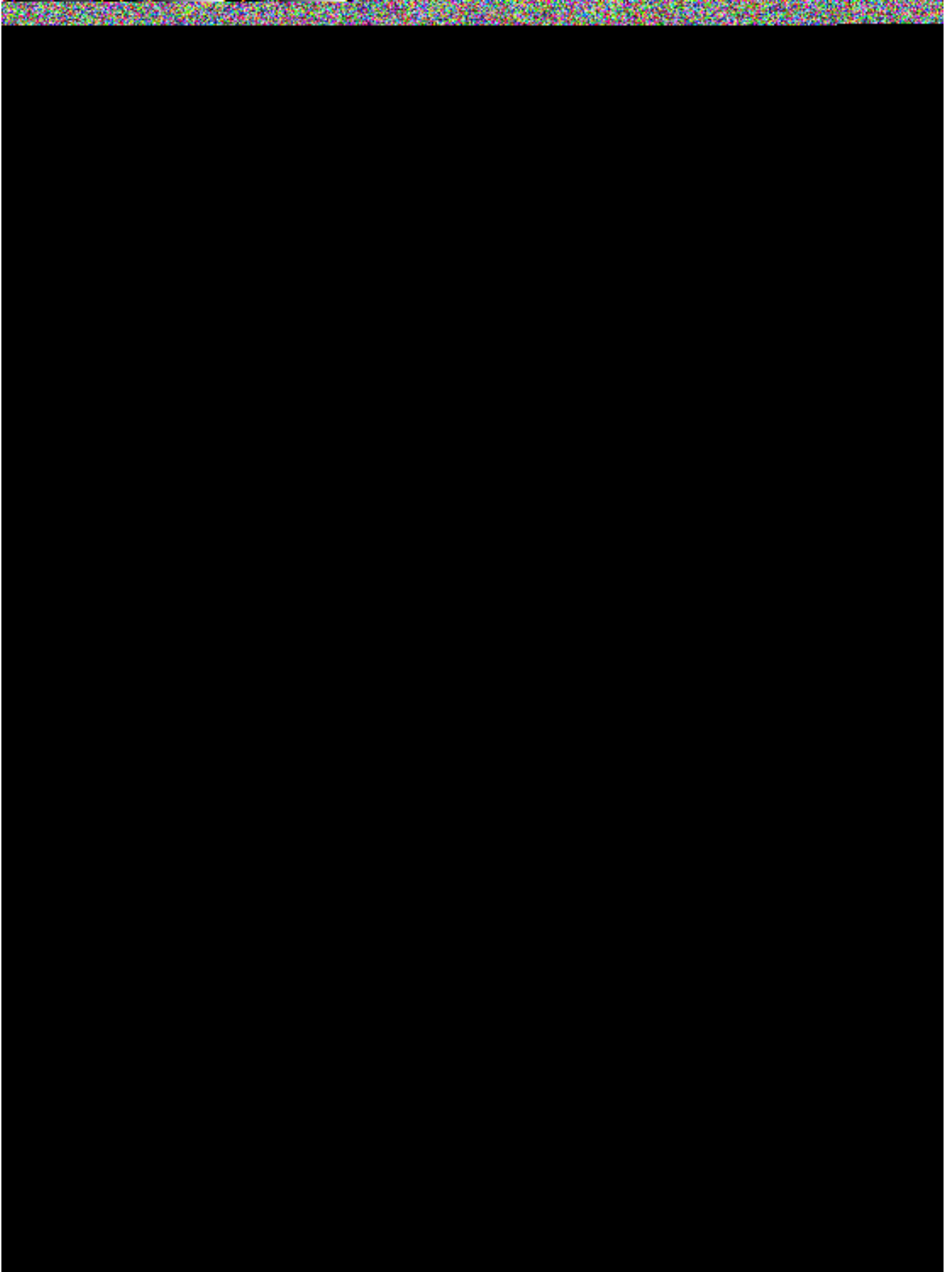
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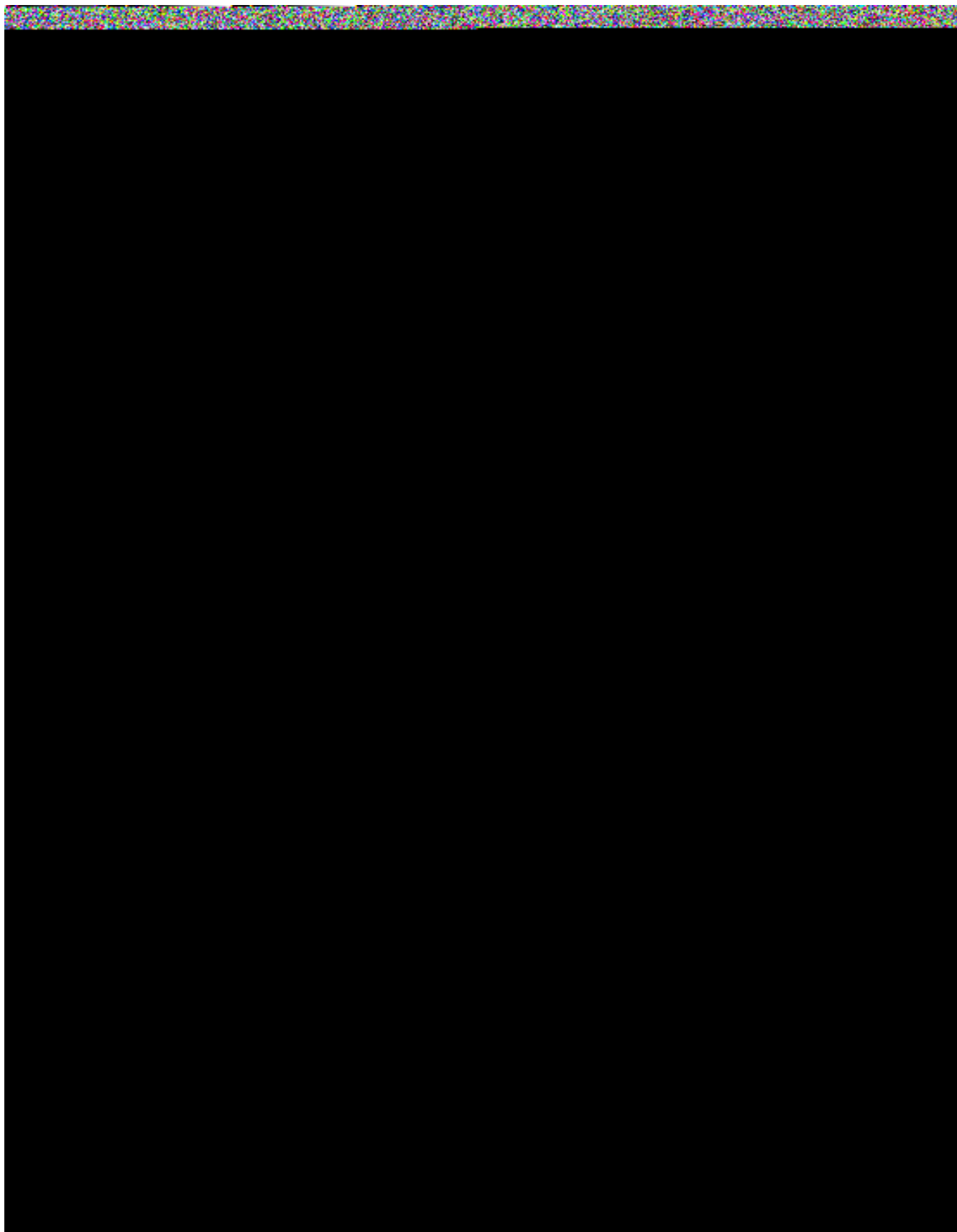


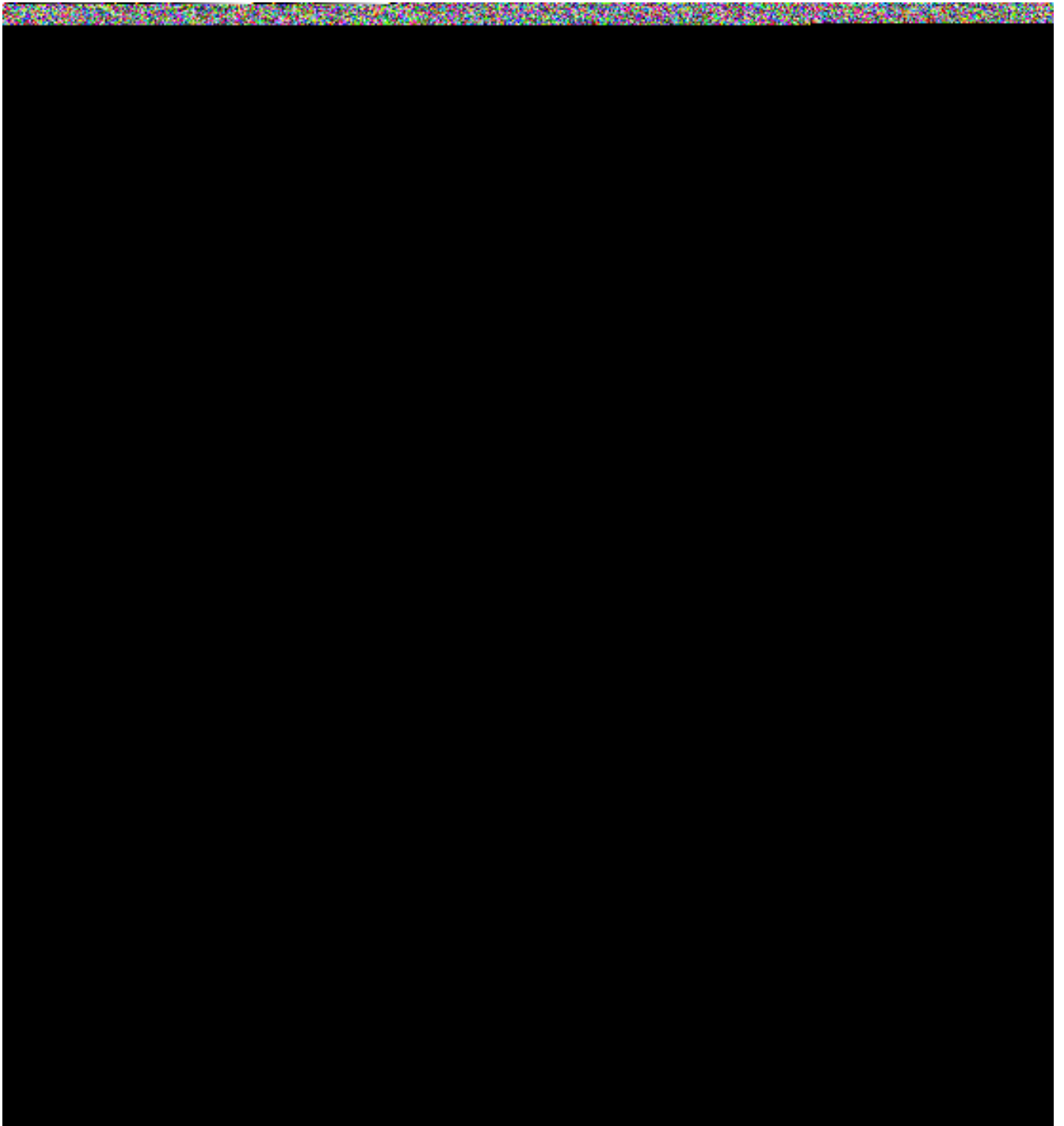












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